Deep Dive: How Non-Compete Clauses Trap Workers

竞业限制如何困住劳动者——寒蝉效应、知识溢出与买方垄断

From: Deep Dive - How Non-Compete Clauses Trap Workers / The Claustrophobic Corp (2026)

播客时间戳：完整音频 | 精读截取：00:00–23:15

适配标签：☑考研阅读（经济、法律类议论文）| ☑雅思阅读 / 写作 | ☑托福听力 Lecture + 综合写作 | ★★★★（4 星难度）

题材标签：就业与劳动权益 | 企业与法律 | 创新经济（雅思托福写作高频话题）

区分提示：【考研同学可跳过语音板块】

预听任务 Pre-Listening（先听音频，不要看文稿！模拟雅托听力做题）

1. Blind listen 盲听 2 遍音频，思考 2 个问题（不要查词）：

① How did non-compete clauses spread from top executives to ordinary workers?

（入职文件 + 不对等筹码——托福听力“过程类”题高频考点）

② Why do non-competes hurt even workers who never signed one?

（知识溢出 + 买方垄断——考研阅读因果题）

2. 预判 3 个核心名词（降低盲听门槛）：

non-compete clause 竞业限制条款；**chilling effect** 寒蝉效应；**garden leave** 花园假期

提示：雅托学生完成盲听再读文本；考研笔试学生可以直接进入文本精读。参考答案见文末。

原文精读 Transcript

标记说明

Long sentence	红色下划线：长难句（右上角编号对应后文【长难句精析】）
paraphrase	黄色高亮：同义替换 / 考试改写点（右栏 Paraphrase 专区）
But / Instead	蓝色波浪线：逻辑信号词（转折、让步、反驳、对比、因果）
⚠【口语 | 书面替换：...】	灰色标注：仅播客口语表达，不建议书面写作
bold	加粗：本段重点词（右栏有音标释义）

排版说明：左栏英文原文，右栏为本段重点词 + Paraphrase 同义替换；每部分的中文参考译文统一放在该部分末尾——先独立读懂英文，再核对译文。

— The Resignation and the Letter 00:00–01:34

¶1 So, I want you to picture this. Picture an experienced software developer or, you know, maybe a middle manager who has spent, like, the last five years just grinding out 60-hour weeks. Right. Missing the family dinners, carrying the whole department. Exactly. Carrying all that weight. And then, after months of quiet networking and these really intense interviews, they finally land it. A massive opportunity. A higher-paying job at a rival firm that actually respects their talent. Which is the dream, right? Right. So, they walk into their boss's office, hand in their resignation, and sit down, fully expecting a standard, maybe slightly awkward, exit interview.

Paraphrase 同义替换

grinding out 60-hour weeks
语境：苦熬每周 60 小时的工作
✎ *working exhausting 60-hour weeks*

carrying the whole department
语境：一个人撑起整个部门
✎ *doing most of the team's work*

quiet networking
语境：悄悄经营人脉
✎ *building contacts discreetly*

¶2 Sure. They pack up their desk, they celebrate with their family that weekend, and mentally prepare for this great fresh start. Then, a few days later, the mail arrives. Oh, here it comes⚠【口语｜书面替换：Then the trouble begins.】. Yep. They are hit with a certified legal **cease-and-desist letter** from their former employer. And this letter claims that their domain skills, their industry contacts, their very expertise are basically **proprietary** company property. Wow. And it ends with a threat. A massive, financially ruinous lawsuit if they dare to take that new job. So, suddenly, this incredible career milestone turns into this paralyzing nightmare.

本段重点词

cease-and-desist letter /ˌsiːs ənd dɪˈzɪst ˌletə/
律师警告函；停止侵权函

proprietary /prəˈpraɪətri/
专有的；所有权的

Paraphrase 同义替换

financially ruinous lawsuit
语境：毁灭性的巨额诉讼
✎ *a lawsuit that could bankrupt them*

this paralyzing nightmare
语境：令人瘫痪的噩梦
✎ *a terrifying situation that stops them in their tracks*

¶3 Yeah, it completely flips on them. It does. And what is truly alarming here is that this isn't a glitch in corporate policy. It is a highly engineered, **ubiquitous** trap called the Modern **Non-Compete Clause**. Yeah. It's everywhere now. It really is.

本段重点词

non-compete clause /ˌnɒn kəmˈpiːt klɔːz/
竞业限制条款

ubiquitous /juːˈbɪkwɪtəs/
无处不在的

Paraphrase 同义替换

it completely flips on them
语境：整件事彻底反转
✎ *everything suddenly turns against them*

a glitch in corporate policy
语境：公司政策的疏漏
✎ *an accidental mistake in company rules*

第一部分 参考译文（先独立读懂英文，再核对译文）

¶1 我想请你想象这样一个场景。想象一位经验丰富的软件开发工程师，或者也许是一位中层管理者，他在过去五年里，一直苦熬每周60小时的工作。嗯。错过一顿顿家庭晚餐，一个人撑起整个部门。没错。扛下所有重担。然后，经过数月悄悄经营人脉、一轮轮极其紧张的面试，他终于拿到了。一个绝佳机会。竞争对手公司一份薪水更高、真正尊重他才华的工作。这可是梦寐以求的事，对吧？嗯。于是，他走进老板办公室，递上辞职信，然后坐下，满心以为会有一场常规的、也许略微尴尬的离职面谈。

第一部分 参考译文（先独立读懂英文，再核对译文）

¶2 当然。他收拾好办公桌，那个周末和家人一起庆祝，在心里为这个美好的全新起点做准备。几天后，邮件到了。哦，来了。对。他收到前雇主寄来的一封挂号律师警告函。信中声称，他的领域技能、行业人脉、乃至他的专业能力，基本上都属于公司专有财产。哇。信的结尾是一个威胁。如果他胆敢接受那份新工作，就提起一场毁灭性的巨额诉讼。于是，这个了不起的职业里程碑，突然变成令人瘫痪的噩梦。

¶3 对，整件事彻底反转。确实。真正令人警醒的是，这并不是公司政策的什么疏漏。这是一个精心设计、无处不在的陷阱，叫做现代竞业限制条款。对。如今它无处不在。确实。

二 From Executive Tool to Corporate Dragnet 01:34–03:12

¶4 So, we have a massive macroeconomic and regulatory report in front of us today. It's titled The Claustrophobic Corp. Great title, honestly⚠【口语 | 书面替换：The title is very apt.】. Right? Very fitting. And our mission for this deep dive is to unpack a very specific question. How exactly did post-employment restrictions transform from this rare legal tool reserved for C-suite executives into, well, a corporate **dragnet** that locks ordinary workers out of their careers and **stifles** the entire economy?[长难句1] Yeah. Okay. Let's unpack this. Because it's a, well, it's a profound structural shift in how human capital is treated. To really understand the scale of this, we have to look at the historical baseline.

本段重点词

dragnet /ˈdrægnet/
拉网；（大范围的）罗网

stifles /ˈstaɪflz/
扼杀；抑制

¶5 Right. Like, where did this even start? Well, 30 or 40 years ago, non-competes were incredibly narrow instruments. I mean, they were deployed almost exclusively for executive leadership, chief scientists, or, you know, top-tier researchers. So people with actual literal secrets. Exactly. We are talking about individuals who possessed critical intellectual property, unreleased product formulas, or intimate knowledge of impending mergers. Right. The stakes were huge for those specific roles. Right. The restrictions made logical sense for that demographic.

Paraphrase 同义替换

actual literal secrets
语境：真正实实在在的机密
✎ *real confidential information*

impending mergers
语境：即将到来的并购
✎ *upcoming company takeovers*

¶6 But today, the macroeconomic data we are analyzing in this report shows a complete saturation of the labor market. Just the total blanket approach. Total saturation. These **restrictive covenants** are embedded in employment contracts across middle management, baseline administrative staff, gig platform operators, and, I mean, even minimum wage frontline service employees. Which is just wild to think about. Like, a barista having a non-compete. Yeah. It defies logic.

本段重点词

restrictive covenants /rɪˈstrɪktɪv ˈkʌvənənts/
限制性契约

Paraphrase 同义替换

the total blanket approach
语境：全覆盖的做法
✎ *applying the rule to everyone*

It defies logic
语境：完全不合逻辑
✎ *it makes no sense*

第二部分 参考译文（先独立读懂英文，再核对译文）

¶4 今天我们面前，有一份厚重的宏观经济与监管报告。题为《令人窒息的公司》。说实话，这标题起得好。对吧？非常贴切。本期深潜的任务，是拆解一个非常具体的问题。离职后限制，究竟如何从一种为C级高管保留的罕见法律工具，演变成一张企业罗网，把普通劳动者挡在职业门外，扼杀整个经济？对。好。我们来拆解。因为这是一场，嗯，对待人力资本方式上，一场深刻的结构性转变。要真正理解其规模，我们得先看历史基线。

¶5 好。这一切究竟从何而起？三四十年前，竞业限制是范围极其狭窄的工具。几乎只用于高管层、首席科学家，或者顶尖研究人员。也就是真正掌握实实在在机密的人。没错。我们说的是掌握关键知识产权、尚未发布的产品配方、或对即将到来的并购了如指掌的人。好。对这些特定岗位，利害关系巨大。好。对那类人群，限制措施合乎逻辑。

¶6 但今天，我们在这份报告中分析的宏观经济数据显示，劳动力市场已完全饱和。完全是全覆盖的做法。彻底饱和。这些限制性契约，被嵌入从中层管理者、基层行政人员、零工平台从业者，甚至拿最低工资的一线服务员工的雇佣合同里。想想都觉得离谱。比如一个咖啡师，居然也要签竞业限制。对。完全不合逻辑。

The Trap Is Set at Onboarding 03:12–04:46

¶7 Well, let's focus on the mechanics of how that saturation actually happens. Because the trap is set long before the worker ever tries to leave, right? It begins at the onboarding phase. Right. The very beginning. Yeah. And there is a massive power imbalance here that fundamentally alters the nature of consent. I mean, think about it. A job seeker has likely gone through weeks of stressful interviews. Oh, absolutely. They might be currently unemployed. They have rejected other potential offers. And on their first day, they're just handed this mountain of standard onboarding paperwork.

Paraphrase 同义替换

a massive power imbalance
语境：巨大的权力不对等
a huge gap in bargaining power

mountain of standard onboarding paperwork
语境：一大堆标准入职文件
a huge pile of routine hiring documents

¶8 Just a stack of digital documents. Exactly. And the non-compete clauses are routinely buried within these digital documents, presented strictly on a take-it-or-leave-it basis. Right. And the leverage of that specific moment is entirely **asymmetric**. The employer holds the capital and the job offer, while the employee is operating under the pressure of securing their livelihood. They just need the job. Exactly. From a labor economics perspective, we call this a failure of **bilateral** negotiation. Okay. Failure of bilateral negotiation. Meaning what exactly? Meaning the worker is not in a position to hire a contract lawyer to strike out a non-compete clause in a standard HR portal.

本段重点词

asymmetric /ˌeɪsɪˈmetrɪk/
不对称的；不对等的

bilateral /ˌbaɪˈlætərəl/
双边的

Paraphrase 同义替换

strike out
语境：划掉
remove

¶9 I mean, they simply click accept to generate their first paycheck. Right. It's like being asked to sign away your future mobility just to get the keys to the building today. That's a perfect way to put it. It just defies basic fairness. When applicants are focused on immediate compensation or figuring out

Paraphrase 同义替换

sign away your future mobility
语境：签字放弃未来的流动自由
give up your freedom to change jobs

the long-term cost
语境：长期代价

their new commute and simply getting the job, they sign this paperwork without realizing the trap. They don't see the long-term cost. They really don't.

✎ *the price paid later*

第三部分 参考译文（先独立读懂英文，再核对译文）

¶7 我们来看看，这种饱和实际是如何发生的。因为这个陷阱，早在劳动者试图离职之前很久就已布下，对吧？它始于入职阶段。好。最开始。对。这里存在巨大的权力不对等，从根本上改变了同意的性质。你想想看。求职者很可能已经经历了数周压力重重的面试。哦，没错。他可能目前正处于失业状态。他已经拒绝了其他可能的录用。而在入职第一天，就被塞给一大堆，标准的入职文件。

¶8 一摞电子文档。没错。竞业限制条款，通常被埋在这些电子文档之中，完全以要么接受、要么走人的方式呈现。好。那个特定时刻的谈判筹码，完全不对称。雇主掌握资本和工作机会，而员工在保住生计的压力之下行事。他太需要这份工作了。没错。从劳动经济学的角度，我们称之为双边谈判的失败。好。双边谈判失败。具体是什么意思？意思是，劳动者没有能力请一位合同律师，去划掉标准人力资源系统里的竞业限制条款。

¶9 他只是点下接受，好拿到第一份工资。好。这就像被要求签字放弃未来的流动自由，只为今天拿到大楼的钥匙。这个说法太贴切了。这违背了基本的公平。当求职者关注眼前的薪酬、琢磨新的通勤路线、一心只想拿到工作，他签下这些文件，却没意识到陷阱。他看不到长期代价。确实看不到。

四 Punitive Damages and Zero Compensation 04:46–06:40

¶10 And the penalty for trying to reclaim that mobility later is severe. The report outlines what are known as liquidated contract penalty damages. But how does that actually work in practice? It's pretty aggressive. Like, are these companies clawing back signing bonuses you already spent? Or are they literally suing you for future lost profits? Well, in many cases, the legal mechanism is designed to be as **punitive** as possible to just maximize deterrence. **Liquidated damages** are predetermined sums written into the contract that the employee agrees to pay if they breach the non-compete. OK, so a flat fee for leaving. Right. But it goes way beyond just those preset numbers. Corporations will file for injunctive relief to physically stop the new employment. Like a judge ordering you not to work. Exactly.

本段重点词

punitive /ˈpjuːnətɪv/
惩罚性的

liquidated damages /ˈlɪkwɪdeɪtɪd ˈdæmɪdʒɪz/
违约金（约定损害赔偿）

Paraphrase 同义替换

clawing back signing bonuses
语境：追回签约奖金
✎ *taking back joining bonuses*

maximize deterrence
语境：把威慑拉到最大
✎ *discourage people as much as possible*

¶11 While simultaneously suing for speculative lost profits, claiming the departing employee will inevitably cost them clients or market share. That is terrifying. It gets worse. They also routinely include fee-shifting provisions, meaning the worker is suddenly on the hook for the corporation's exorbitant legal fees as well as their own. Oh, wow. So you're paying their high-powered lawyers to sue you. Exactly. We are talking about financial penalties that can easily exceed multiple years of a worker's base salary. That creates a glaring contradiction, though. Because, I mean, they threaten

Paraphrase 同义替换

speculative lost profits
语境：推测性的利润损失
✎ *profits they claim they might lose*

fee-shifting provisions
语境：费用转嫁条款
✎ *clauses making you pay their legal costs*

exorbitant legal fees
语境：高昂的律师费
✎ *extremely high lawyers' bills*

to ruin you financially for leaving and participating in your chosen profession.

¶12 But what do they offer you to stay home? Like, if a company demands you don't work in your field for an entire year, they aren't paying your rent for that year. No, not at all. The mandatory post-employment compensation provided by the company during the restriction period is typically zero, right? Precisely zero, in the vast majority of modern cases. Which just leaves departing workers completely financially stranded. Yeah, totally trapped.

Paraphrase 同义替换

financially stranded
语境：经济上走投无路
✎ *left with no income*

第四部分 参考译文（先独立读懂英文，再核对译文）

¶10 日后试图夺回这份流动自由，惩罚十分严厉。报告概述了所谓合同违约金。实际中是怎么运作的？相当咄咄逼人。比如，这些公司会追回你已经花掉的签约奖金吗？还是真的会为未来的利润损失起诉你？很多情况下，这套法律机制被设计得尽可能具惩罚性，只为把威慑拉到最大。违约金是事先写进合同的固定金额，员工同意一旦违反竞业限制，就支付这笔钱。好，也就是离职的固定罚款。对。但远不止这些预设数字。公司会申请禁令救济，从实质上阻止新雇佣关系。就像法官命令你，不许去工作。没错。

¶11 同时还起诉索赔推测性的利润损失，声称离职员工，必然会让他们损失客户或市场份额。太可怕了。还有更糟的。合同里通常还包含费用转嫁条款，意味着劳动者突然要承担公司高昂的律师费，外加自己的律师费。哦，天哪。所以是你掏钱，请他们的大牌律师来起诉你。没错。我们说的这些经济处罚，轻易就能超过一名劳动者好几年的基本工资。不过，这造成一个刺眼的矛盾。因为，他们威胁要在经济上毁掉你，只因你离职、从事自己选择的职业。

¶12 但让你待在家里，他们又给你什么？如果一家公司要求你一整年，不在本行业工作，那一年他们可不会替你付房租。不，根本不会。公司在限制期内，必须支付的离职后补偿，通常为零，对吧？在绝大多数现代案例中，分文没有。这让离职劳动者，在经济上彻底走投无路。对，完全被困住。

五 The Chilling Effect 06:40–08:22

¶13 And this leads to a critical psychological and economic phenomenon known as the **chilling** effect. Okay, what's that? Well, the fascinating and, frankly, deeply concerning part of the data is that a non-compete does not actually have to be legally enforceable to be highly effective.[长难句2] Wait, really? Even if it's a fake threat? Even when an agreement is legally dubious, overly broad, or entirely void under a specific state's local labor statutes, its mere existence paralyzes the workforce. Because the legal reality doesn't matter if you can't afford the admission ticket to the courtroom. Precisely. If you're a mid-tier professional, like a software developer or a logistics coordinator, you do not have the liquid financial reserves to retain a corporate litigation firm.

本段重点词

chilling /ˈtʃɪlɪŋ/
令人寒心的；（chilling effect）寒蝉效应

Paraphrase 同义替换

legally dubious
语境：法律上站不住脚
✎ *of questionable legality*

paralyzes the workforce
语境：让劳动者不敢动弹
✎ *stops workers from acting*

the admission ticket to the courtroom
语境：进法庭的门票
✎ *the cost of going to court*

¶14 No, of course not. I mean, a standard **retainer**, just to respond to a cease and desist letter, can run tens of thousands of dollars. You simply cannot fight prolonged litigation against a multinational corporation. You'd go bankrupt before you even got to a judge. Exactly. So you read that letter, the anxiety takes over, and you back down. You decline the competing job offer, you abandon the startup idea you were forming, and you just remain stuck in a stagnant corporate role. Right. And that individual stagnation, that's the exact mechanism that triggers the broader economic fallout.

本段重点词

retainer /rɪˈteɪnə/
（律师）预付聘金

Paraphrase 同义替换

prolonged litigation
语境：旷日持久的官司
✎ *a long legal battle*

you back down
语境：你退缩了
✎ *you give up*

a stagnant corporate role
语境：停滞不前的公司岗位
✎ *a dead-end job*

¶15 Right, because why should everyone else care? That's the big invisible cost here. Exactly. If we connect this to the bigger picture, if one worker is financially paralyzed, that is a personal tragedy. But if tens of millions of workers are paralyzed across an entire sector... That's a disaster. It is a structural market failure.

Paraphrase 同义替换

a personal tragedy
语境：个人悲剧
✎ *a private misfortune*

第五部分 参考译文（先独立读懂英文，再核对译文）

¶13 这导致一个关键的心理与经济现象，叫做寒蝉效应。好，那是什么？数据中耐人寻味、坦率说也令人深感忧虑的一点是：竞业限制其实不必在法律上可执行，也能高度奏效。等等，真的吗？哪怕只是虚张声势？即使一份协议在法律上站不住脚、范围过宽，或根据某州当地劳动法规完全无效，仅仅它的存在，就足以让劳动者不敢动弹。因为法律现实并不重要，如果你连进法庭的门票都付不起。没错。如果你是一名中等层级的专业人士，比如软件开发工程师或物流协调员，你没有可动用的积蓄，去请一家公司诉讼律所。

¶14 不，当然没有。光是一笔常规的预付聘金，仅仅为了回应一封律师警告函，就可能高达数万美元。你根本无法与一家跨国公司，打一场旷日持久的官司。还没见到法官，你就已经破产了。没错。于是你读完那封信，焦虑攫住了你，然后你退缩了。你谢绝了竞争对手的录用，放弃了正在酝酿的创业念头，只能继续困在一个停滞不前的公司岗位上。好。而这种个人层面的停滞，正是引发更广泛经济恶果的确切机制。

¶15 对，因为其他人凭什么要在乎？这就是这里巨大的隐性成本。没错。如果把这与更大的图景联系起来，一个劳动者在经济上动弹不得，那是个人悲剧。但如果数千万劳动者，在整个行业中都动弹不得……那就是灾难。是结构性的市场失灵。

六 Suppressed Knowledge Spillovers 08:22–10:12

¶16 How does this individual fear aggregate into actual economic stagnation? It comes down to the suppression of what economists call **knowledge spillovers**. OK, walk us through the mechanics of a knowledge spillover. Like, how does an individual moving from company A to company B actually build a broader economy? Well, economic research consistently demonstrates that vibrant regional innovation hubs, think like Silicon Valley or biotech corridors, they thrive entirely on the frictionless movement of human capital. Right. People bouncing around, sharing ideas. Exactly. When skilled workers move freely between companies, they do not just bring their explicit job skills, they bring implicit knowledge. Like best practices?

本段重点词

knowledge spillovers /ˈnɒlɪdʒ ˈspɪləʊvəz/
知识溢出

Paraphrase 同义替换

frictionless movement of human capital
语境：人力资本的无障碍流动
✎ *workers moving freely between jobs*

¶17 Yeah, they bring better management techniques, more efficient ways to organize a code repository or, you know, novel approaches to quality assurance. They **cross-pollinate** ideas. OK, that makes sense. And more importantly, when they see an inefficiency that their current employer refuses to fix, they leave and launch disruptive startups to solve that exact problem. So the whole ecosystem relies on a constant churn of talent and ideas. But when aggressive non-competes lock workers in place, that cross-pollination hits a brick wall. People learn how to build something, they see a better way to do it, but they are terrified to act on it because their former employer holds a legal guillotine over their head. That's exactly what the data shows.

本段重点词

cross-pollinate /ˌkrɒs ˈpɒlɪneɪt/
交叉授粉；相互促进

Paraphrase 同义替换

a constant churn of talent
语境：人才的不断流动
✎ *people continually changing jobs*

hits a brick wall
语境：撞上一堵砖墙
✎ *comes to a complete stop*

a legal guillotine
语境：一架法律断头台
✎ *a legal threat that could end their career*

¶18 It strongly correlates high non-compete enforcement with depressed startup formation. Oh, so fewer new businesses are even being created. Right. Potential founders choose not to launch new ventures out of fear of devastating intellectual property infringement lawsuits. This deprives the entire economy of disruptive new competitors. That is a massive hidden cost. It is.

Paraphrase 同义替换

depressed startup formation
语境：低迷的创业数量
✎ *fewer new businesses being started*

disruptive new competitors
语境：颠覆性的新竞争者
✎ *innovative new rivals*

第六部分 参考译文（先独立读懂英文，再核对译文）

¶16 这种个人恐惧，如何汇聚成实际的经济停滞？关键在于，它压制了经济学家所说的知识溢出。好，给我们讲讲知识溢出的机制。比如，一个人从A公司跳槽到B公司，究竟如何建设更宏观的经济？经济研究一再表明：充满活力的区域创新中心，比如硅谷或生物科技走廊，它们完全依靠人力资本的无障碍流动而繁荣。好。人们跳来跳去，分享想法。没错。当技术熟练的劳动者，在公司之间自由流动，他们带来的不只是显性的岗位技能，还带来隐性知识。比如最佳实践？

第六部分 参考译文（先独立读懂英文，再核对译文）

¶17 对，他们带来更好的管理方法、组织代码仓库更高效的方式，或者质量保证上的新办法。他们让想法交叉授粉。好，有道理。更重要的是，当他们看到一种低效，而现任雇主拒绝改进，他们就离职，创办颠覆性的创业公司，去解决那个问题。所以整个生态，依靠人才与想法的不断流动。但当咄咄逼人的竞业限制，把劳动者锁在原地，这种交叉授粉，就撞上一堵砖墙。人们学会如何造出某样东西，看到更好的做法，却不敢行动，因为前雇主，把一架法律断头台悬在他们头顶。数据显示的正是如此。

¶18 高强度的竞业限制执行，与低迷的创业数量高度相关。哦，所以连新企业都更少被创立。对。潜在创始人，因害怕毁灭性的知识产权侵权诉讼，而选择不创办新企业。这让整个经济，失去颠覆性的新竞争者。这是巨大的隐性成本。确实。

七 Monopsony Power and Frozen Wages 10:12–12:12

¶19 But the macroeconomic damage goes even deeper than innovation. It fundamentally alters the pricing of labor through a mechanism called **monopsony** power. OK, let's break down that mechanism. We all know what a monopoly is, right? One seller controlling the entire market for a good which drives prices up. Right. So monopsony is the inverse. It's about a single dominant buyer. And in this case, the buyer is buying human labor. That is the crucial distinction. When workers cannot freely sell their labor to the highest bidder in their local industry because they're bound by non-competes, market competition for human talent completely breaks down. The market just freezes. Exactly.

本段重点词

monopsony /məˈnɒpsəni/
买方垄断

¶20 Think about it from the perspective of a corporate human resources department. OK. If they know their **attrition** rate is artificially suppressed because their staff legally cannot jump to a competitor, they face significantly less pressure to raise salaries, improve working conditions or invest in employee development.[长难句3] Yeah. I mean, why would they authorize a 10 percent raise to retain a senior developer if they know that developers only other legal option is to abandon their career entirely or, you know, go work in an unrelated, lower paying field? They wouldn't. And they don't. This monopsony power depresses wage growth across entire sectors. So nobody gets a raise. Basically.

本段重点词

attrition /əˈtrɪʃn/
（人员）流失；自然减员

¶21 The productivity gains that an industry makes through technological advancement end up accruing almost exclusively to corporate profit margins rather than translating into higher worker compensation. Which means even if you, as a listener, do not personally have a non-compete clause in your contract, your wages might still be suppressed. Oh, absolutely. Because your entire industry's labor market is artificially frozen. Companies just don't

Paraphrase 同义替换

bidding wars for talent
语境：为抢人才展开的竞价战
competition among firms to hire people

short circuited
语境：就此短路
blocked

have to engage in bidding wars for talent. The whole system is cooled down. Right. The fundamental mechanism of a free labor market, the ability to leverage a better offer to force your current employer to compete to keep you, is just short circuited. It is a systemic suppression of wage growth. And it's engineered entirely through contract law.

第七部分 参考译文（先独立读懂英文，再核对译文）

¶19 但宏观经济损害，比创新受阻更为深刻。它通过一种叫做买方垄断力量的机制，从根本上改变劳动力的定价。好，我们来拆解这个机制。我们都知道垄断是什么，对吧？一个卖家，控制一种商品的整个市场，从而抬高价格。好。买方垄断，则正好相反。它关乎一个占主导地位的单一买家。而在这里，买家购买的是人的劳动力。这是关键区别。当劳动者无法把劳动力，自由卖给本地行业中出价最高的人，因为受竞业限制束缚，对人才的市场竞争，就会彻底失灵。市场就此冻结。没错。

¶20 从公司人力资源部门的角度想想。好。如果他们知道，流失率被人为压低，因为员工在法律上无法跳槽到竞争对手那里，他们加薪的压力就会大幅减小，改善工作条件、投资员工发展的压力同样如此。对。既然知道，那位开发工程师唯一合法的选择，是彻底放弃职业，或去一个不相关、薪水更低的领域工作，他们又凭什么，批准10%的加薪去留住他？他们不会。事实上也确实没有。这种买方垄断力量，压低整个行业的工资增长。所以谁都加不了薪。基本上如此。

¶21 一个行业通过技术进步，取得的生产率提升，最终几乎全部落入公司利润率，而没有转化为劳动者更高的报酬。这意味着，即使你作为听众，个人合同里并没有竞业限制条款，你的工资，仍可能被压低。哦，没错。因为你整个行业的劳动力市场，被人为冻结。公司根本不必为抢人才，展开竞价战。整个体系被冷却下来。好。自由劳动力市场的根本机制——即拿一份更好的录用做筹码，迫使现任雇主为留住你而竞争——就此短路。这是对工资增长，系统性的压制。而且完全是通过合同法设计出来的。

八 Non-Competes vs. NDAs 12:12–14:04

¶22 OK, I understand the macroeconomic damage, but let's play devil's advocate and examine the corporate justification for a moment. Sure. Let's hear it. Doesn't a company that spends millions of dollars training an employee and giving them access to internal operations have a legitimate right to protect itself from that worker instantly walking over to a competitor? They have every right to protect actual trade secrets and confidential code through **nondisclosure agreements**. But they don't own the worker's human capital, experience or general professional skills. If a company wants to retain top talent, the answer is to pay the market value and create a great work environment, not to legally chain them to their desks. But practically speaking, isn't an NDA almost impossible to enforce compared to a non-compete?

本段重点词

nondisclosure agreements /ˌnɒndɪsˈkləʊʒə əˈgriːmənts/
保密协议（NDA）

Paraphrase 同义替换

play devil's advocate
语境：唱个反调
✎ *argue the opposite side*

¶23 It's certainly more difficult. Yes. Because a non-compete is a binary administrative tool, right? You either work for the competitor or you don't. It's incredibly easy for HR to police. Right. An NDA, on the other hand,

Paraphrase 同义替换

a binary administrative tool
语境：非此即彼的行政工具
✎ *a simple yes-or-no rule*

requires a company to legally prove you used a specific client list or like a specific line of code in your new job, which is a massive burden of proof. Aren't non-competes just the cheaper, lazier administrative option for corporations? Well, you've hit on the exact reason they are so heavily utilized. Non-competes are a blunt, proactive instrument.

¶24 They eliminate the risk by eliminating the competitor entirely. Just wiping them off the board. Exactly. NDAs, however, are a surgical, reactive instrument. Yes, proving a breach of an NDA requires discovery, forensic digital analysis and a really high legal burden of proof. Which costs time and money. It does. But from a societal and economic standpoint, the fact that an NDA is harder for a corporation to enforce does not justify stripping a citizen of their right to earn a living. Right. Convenience shouldn't trump rights. Exactly. The administrative convenience of a corporation should not supersede the fundamental autonomy of the labor force.[长难句4]

a massive burden of proof
语境：极重的举证责任
✎ *a very high standard of evidence*

proactive instrument
语境：先发制人的工具
✎ *a tool used in advance*

Paraphrase 同义替换

wiping them off the board
语境：直接把对方从棋盘上抹掉
✎ *removing them from the game*

a surgical
语境：精准的
✎ *precisely targeted*

Convenience shouldn't trump rights
语境：便利不应凌驾于权利之上
✎ *ease should not override rights*

第八部分 参考译文（先独立读懂英文，再核对译文）

¶22 好，宏观经济损害我理解了，但让我们唱个反调，审视一下公司一方的理由。好。说来听听。一家公司，花数百万美元培训员工、让他接触内部运营，难道没有正当权利，防止这名员工立刻投奔竞争对手？他们完全有权，通过保密协议保护真正的商业秘密和机密代码。但他们并不拥有劳动者的人力资本、经验或通用专业技能。如果一家公司，想留住顶尖人才，答案是支付市场价值、创造良好的工作环境，而不是用法律，把人锁在办公桌前。但从实际角度讲，与竞业限制相比，保密协议不是几乎无法执行吗？

¶23 确实更困难。对。因为竞业限制，是一种非此即彼的行政工具，对吧？你要么为竞争对手工作，要么没有。人力资源部门核查起来，极其容易。好。而保密协议，要求公司在法律上证明，你在新工作中使用了某份客户名单，或某一行具体的代码，这是极重的举证责任。竞业限制，难道不正是公司更便宜、更省事的行政选择吗？你正好点中了，它们被如此大量使用的确切原因。竞业限制，是一种粗暴、先发制人的工具。

¶24 它通过彻底消灭竞争者，来消除风险。直接把对方从棋盘上抹掉。没错。而保密协议，是一种精准、事后应对的工具。对，要证明违反保密协议，需要证据开示、数字取证分析，以及极高的法律举证责任。既花时间，又花钱。确实。但从社会与经济角度看，保密协议对公司来说更难执行，并不能成为剥夺一位公民谋生权利的理由。好。便利，不应凌驾于权利之上。没错。公司的行政便利，不应凌驾于劳动力根本的自主权之上。

九 Legitimate Defense vs. Market Misuse 14:04–16:13

¶25 That tension is perfectly illustrated in the analytical matrix provided in the report. It really contrasts legitimate risk defense against contemporary market misuse. It does a great job mapping that out. Yeah, it highlights how the scope of these contracts has become entirely unmoored from their original purpose. The matrix tracks the evolution brilliantly. If we look back at the legitimate risk mitigation model of the late 20th century, the target demographic was strictly C-suite executives and key inventors. Like we talked about earlier. Right. And the protected asset class was undeniable. Core trade secrets, proprietary source code, registered patents, and crucially, the restrictions were highly localized and strictly limited in time, usually just three to six months. And most importantly, under that old model, the restriction usually included full base salary continuation.

Paraphrase 同义替换

entirely unmoored from their original purpose
语境：彻底脱离其初衷
✎ *completely detached from their original aim*

full base salary continuation
语境：全额基本工资照发
✎ *continuing to pay the full salary*

¶26 They paid you. They literally paid you to sit on the bench so you wouldn't take their impending merger details to a rival. The economic justification was simply preventing immediate catastrophic asset theft. Which is fair. But look at the contemporary market misuse realities we are dealing with today. Oh, the target demographic has shifted entirely. It is now mid-level managers, junior engineers, nurses and baseline staff. And what are they even protecting? Well, the asset they claim to be protecting isn't a secret formula anymore. It is general domain experience, professional skills and basic industry contacts. Which is just a fancy legalistic way of saying knowing how to do your job. Pretty much. I mean, you can't patent the experience of knowing how to soothe an angry client or how to debug a server efficiently.

Paraphrase 同义替换

sit on the bench
语境：坐冷板凳
✎ *stay out of work*

catastrophic asset theft
语境：灾难性的资产窃取
✎ *a disastrous theft of company assets*

¶27 Yet the scope of these modern restrictions is completely out of control. It really is. We are seeing broad global bans lasting 12 to 24 months. The matrix explicitly states the modern economic justification is no longer about protecting long term corporate research and development. No, it's about control. Exactly. It's exclusively about retaining captive labor, depressing industry wages and suffocating emerging competitors before they can even scale. It is a stark evolution. What began as targeted security for genuine innovation has morphed into a blunt anti-competitive weapon.

Paraphrase 同义替换

completely out of control
语境：完全失控
✎ *far beyond reasonable limits*

retaining captive labor
语境：留住被束缚的劳动力
✎ *keeping workers trapped*

a stark evolution
语境：一个鲜明的演变
✎ *a dramatic change*

第九部分 参考译文（先独立读懂英文，再核对译文）

¶25 报告提供的分析矩阵，完美展现了这种张力。它真正把正当的风险防御，与当代的市场滥用对照起来。把这一点梳理得非常清楚。对，它强调这些合同的范围，已彻底脱离其初衷。这个矩阵，出色地追踪了这一演变。回顾20世纪末，正当的风险防范模式，目标人群严格限定为C级高管和核心发明人。就像我们前面说的。好。受保护的资产类别，无可争议。核心商业秘密、专有源代码、注册专利，而且关键的是，限制高度局部化，时间上也严格受限，通常只有三到六个月。最重要的是，在那种旧模式下，限制期通常包含，全额基本工资照发。

¶26 他们付钱给你。他们真的付钱让你坐冷板凳，这样你就不会把即将到来的并购细节，带给竞争对手。经济上的理由很简单：防止迫在眉睫、灾难性的资产窃取。这很合理。但看看我们今天面对的，当代市场滥用现实。哦，目标人群已彻底改变。如今是中层管理者、初级工程师、护士和基层员工。他们又究竟在保护什么？他们声称保护的资产，已不再是什么秘密配方。而是通用的领域经验、专业技能和基本行业人脉。这不过是用花哨的法律辞令，说你懂得如何干自己的工作。差不多。你无法为这种经验申请专利：懂得如何安抚愤怒的客户，或如何高效地给服务器排查故障。

¶27 然而这些现代限制的范围，已完全失控。确实。我们看到范围广泛的全球性禁令，长达12到24个月。矩阵明确指出：现代的经济理由，已不再关乎保护公司长期的研发。不，关乎控制。没错。它只关乎留住被束缚的劳动力、压低行业工资，在新兴竞争者做大之前，就将其扼杀。这是一个鲜明的演变。最初为真正创新提供的针对性保护，已蜕变为一种粗暴的反竞争武器。

Reform One: Income Threshold Bans 16:13–17:32

¶28 So what does this all mean? How do we fix a system that's this broken? Well, the good news is the trajectory is finally shifting. Regulatory bodies and courts are actively introducing comprehensive reform measures. Really? Like what? We are witnessing a global regulatory trend that is aggressively pushing back against this claustrophobic corporate behavior. OK, let's delve into those reforms, because this is where the balance of power actually starts to shift back to the worker. One of the primary legislative tools being deployed is the income threshold ban. Yes, that's a big one. How does that operate mechanically within a state's labor laws? An income threshold ban is a blunt legislative instrument designed to protect the most vulnerable segments of the workforce. Regulators essentially draw a strict income line, say $100,000, $120,000 a year.

Paraphrase 同义替换

the trajectory is finally shifting
语境：趋势终于开始转变
the direction is finally changing

claustrophobic corporate behavior
语境：令人窒息的企业行为
suffocating company practices

¶29 If a worker's total compensation falls below that threshold, any non-compete clause in their contract is automatically declared void and unenforceable as a matter of law.[长难句5] Oh, wow. That instantly removes the asymmetric leverage. Instantly. Because the company can't even threaten a lawsuit. The court would immediately dismiss it and, I assume, likely penalize the employer for attempting to enforce a void contract? Exactly. It frees millions of hourly workers, mid-tier professionals and non-executive staff from that baseline career anxiety. It does.

Paraphrase 同义替换

baseline career anxiety
语境：底层的职业焦虑
basic worry about one's career

第十部分 参考译文（先独立读懂英文，再核对译文）

¶28 那么这一切意味着什么？我们该如何修复，一个如此崩坏的体系？好消息是，趋势终于开始转变。监管机构和法院，正积极推出全面的改革措施。真的吗？比如哪些？我们正目睹一场全球性的监管趋势，大力反击这种令人窒息的企业行为。好，我们来深入这些改革，因为正是在这里，权力天平开始真正向劳动者倾斜。被采用的主要立法工具之一，是收入门槛禁令。对，这是重要的一项。在一个州的劳动法中，它具体如何运作？收入门槛禁令，是一种直接的立法工具，旨在保护劳动力中最弱势的群体。监管者实质上划定一条严格的收入线，比如年薪10万、12万美元。

¶29 如果一名劳动者的总报酬，低于这条门槛，其合同中的任何竞业限制条款，都依法自动宣告无效、不可执行。哦，哇。这立刻消除了不对等的筹码。立刻。因为公司连诉讼都无法威胁。法院会立即驳回，而且我猜，还可能因雇主试图执行无效合同，而对其处罚？没错。它让数百万时薪劳动者、中等专业人士和非高管员工，摆脱那种底层的职业焦虑。确实。

十一 Reform Two: Fully Paid Garden Leave 17:32–19:57

¶30 But for higher earning professionals, the senior developers, the directors, the technical specialists, where companies still fiercely claim a need for restriction, regulators and progressive jurisdictions are mandating a framework known as fully paid **garden leave**. OK, garden leave. I am fascinated by how garden leave completely rewrites the financial incentives for corporate HR departments. It changes everything. Walk us through a concrete example of how this changes the math for a company trying to lock down an employee. All right. Let's take a senior systems engineer making, say, $150,000 a year who decides to leave for a competitor.

本段重点词

garden leave /ˈgɑːdn liːv/
花园假期（带薪离职等待期）

Paraphrase 同义替换

lock down an employee
语境：锁住员工
keep a worker from leaving

¶31 OK. The company's boilerplate contract includes a 12-month non-compete. Now, in the past, the company would simply send the aggressive cease and desist letter, hoping the threat of legal fees would scare the engineer into submission, which costs the company practically nothing. Right. Just the cost of a stamp. Exactly. But under a mandatory garden leave framework, the law states that if the company chooses to enforce that 12-month restriction, they must pay the departing employee 100 percent of their full base salary and benefits for the entire duration of the restriction period.[长难句6] Wait, literally paying them to sit at home? So the HR director has to go to the chief financial officer and say, hey, we want to stop this engineer from working for a rival.

Paraphrase 同义替换

scare the engineer into submission
语境：把这位工程师吓退
frighten the engineer into giving up

Just the cost of a stamp
语境：不过一枚邮票的钱
almost no cost at all

¶32 And to do that, we need to cut a check for $150,000 to someone who will be producing zero output for our company for the next year. Exactly. It forces an immediate, rigorous financial calculation. The company has to determine if that specific employee actually possesses proprietary knowledge so dangerous that it is worth a $150,000 sunk cost to keep them

Paraphrase 同义替换

cut a check
语境：开一张支票
pay

keep them on the sidelines
语境：让他置身局外

on the sidelines. That is an amazing test of their true motives. It really is. And the report notes, with a touch of irony, how quickly companies suddenly drop these non-competes when they actually have to pay for them. Surprise, surprise⚠【口语 | 书面替换：As one might expect.】. Right.

⚠ *Surprise, surprise*：反语，表示“果然不出所料”

✎ *keep them out of action*

¶33 It turns out that engineer's proprietary knowledge is rarely actually worth a year of unearned salary. It calls their bluff entirely. It proves that the clauses were never about protecting vital secrets. They were just a free intimidation tactic. Exactly. Once the intimidation tactic carries a severe financial cost, companies become highly selective. They only enforce post-employment restrictions when true, core trade secrets are genuinely at stake. And the financial tradeoff is demonstrably worth it. Which is how it should be. Exactly.

Paraphrase 同义替换

It calls their bluff entirely
语境：这彻底戳穿了他们的虚张声势
✎ *it exposes their empty threat*

a free intimidation tactic
语境：一种免费的恐吓手段
✎ *a cost-free way to scare people*

第十一部分 参考译文（先独立读懂英文，再核对译文）

¶30 但对于收入更高的专业人士，资深开发工程师、总监、技术专家，公司仍强烈声称，有必要对其加以限制，监管机构和进步的司法辖区，正强制推行一种框架，叫做全额带薪花园假期。好，花园假期。我很感兴趣的是：花园假期如何彻底改写，公司人力资源部门所面对的财务激励。它改变了一切。举一个具体例子，讲讲这如何改变一家公司，试图锁住员工时的算盘。好。以一位资深系统工程师为例，他的年薪，比如15万美元，他决定离职，投奔竞争对手。

¶31 好。公司的模板合同里，包含一份12个月的竞业限制。过去，公司只会发出那封咄咄逼人的律师警告函，指望律师费的威胁，把这位工程师吓退，这对公司来说，几乎不花分文。好。不过一枚邮票的钱。没错。但在强制花园假期的框架下，法律规定：如果公司选择执行，那12个月的限制，就必须在整个限制期内，向离职员工支付100%的全额基本工资和福利。等等，真的付钱让他们坐在家里？于是人力资源总监，不得不去找首席财务官说：嘿，我们想阻止这位工程师，为竞争对手工作。

¶32 为此，我们需要开一张15万美元的支票，给一个明年对我们公司，产出为零的人。没错。它迫使公司立刻进行一番严格的财务计算。公司必须判断：这名特定员工，是否真的掌握某种专有知识，危险到值得花15万美元的沉没成本，让他置身局外。这是对他们真实动机，绝妙的检验。确实。报告还带着一丝讽刺指出：当公司真的必须，为竞业限制掏钱时，它们放弃这些条款的速度，有多快。不出所料。好。

¶33 事实证明，那位工程师的专有知识，很少真的值一年不劳而获的薪水。这彻底戳穿了他们的虚张声势。它证明这些条款，从来不是为了保护关键机密。不过是一种免费的恐吓手段。没错。一旦这种恐吓手段，要付出沉重的财务代价，公司就会变得极具选择性。它们只在真正、核心的商业秘密确实受到威胁时，才执行离职后限制。而且财务上的权衡，明确值得。这本该如此。没错。

十二 Back to NDAs and a Free Labor Market 19:57–23:15

¶34 For the remaining 95% of the workforce, courts and regulators are forcefully orchestrating a pivot back to NDAs. Which brings us back to the burden of proof. Courts are instructing companies that if they want to protect their intellectual property, they must do the hard work of enforcing targeted non-disclosure agreements. Rather than taking the lazy route of locking a worker out of their career entirely. Courts are increasingly invalidating blanket non-competes on this exact basis. They are telling corporations, look, you have robust legal protections against trade secret theft. Use them. Go ahead and sue if they actually steal something. Exactly. If a former employee steals a client list or copies source code, sue them for breach of an NDA. But you cannot preemptively ban them from participating in the economy just because you fear they might compete with you.

Paraphrase 同义替换

the lazy route
语境：偷懒的路子
✎ *the easy option*

blanket non-competes
语境：全覆盖式竞业限制
✎ *non-competes applied to everyone*

¶35 It makes perfect sense. It achieves the necessary corporate security without the macroeconomic collateral damage of a frozen labor market. And beyond the macroeconomic benefits, we really have to emphasize the moral balance here and the profound human relief these reforms bring. It's a huge quality of life issue. It really is. We are talking about alleviating severe, life-altering career anxiety. These regulatory shifts restore true mobility to labor markets. Absolutely. It means that if you spend 10, 15 years grinding, learning and becoming an expert in your field, you actually get to own the human capital you built. You don't have to live in fear of a devastating lawsuit just for trying to advance your career or secure a better life for your family.

Paraphrase 同义替换

life-altering career anxiety
语境：足以改变人生的职业焦虑
✎ *career fears that change people's lives*

¶36 The overarching takeaway from the macroeconomic analysis is undeniable, really. Over the past few decades, non-competes quietly morphed into a structural market distortion. A huge one. They systematically suppress wages, reduce startup formation and basically hoard talent. But this current wave of regulatory pushback is finally dismantling that monopsony power. Bringing things back to normal. Yes, it is forcing companies to return to actual competition. If an employer wants to retain their best people now, they have to do it through better compensation, better management and better corporate culture. Rather than simply handcuffing their employees with fine print. Exactly. It is a return to a genuinely free market, which is how the system was always supposed to operate in the first place.

Paraphrase 同义替换

a structural market distortion
语境：一种结构性的市场扭曲
✎ *a deep flaw in how the market works*

handcuffing their employees with fine print
语境：用合同小字铐住员工
✎ *trapping workers with hidden contract terms*

¶37 And this raises an important question. A final thought from the economic insights we reviewed today that I think is really worth dwelling on. What's that? We generally accept without question that a healthy capitalist economy depends fundamentally on free, highly competitive markets for goods and services. Right. That's just basics. We demand competition to keep prices fair and quality high. So as you look at your own industry and your own career, ask yourself, why did we tolerate a system that completely eliminated the free market for human labor for so long? Wow. Yeah, that is the defining question. It forces us to rethink who really owns our potential. Well, thank you for joining us on this deep dive into the mechanics of labor mobility. Keep questioning the fine print in those onboarding documents. Keep advocating for the ownership of your own human capital. And, well, we hope the next time you or that developer we talked about at the beginning decide to hand in a resignation for a better opportunity, you can do it with excitement rather than fear.

Paraphrase 同义替换

who really owns our potential
语境：我们的潜力究竟属于谁
✎ *who our abilities truly belong to*

第十二部分 参考译文（先独立读懂英文，再核对译文）

¶34 对于剩下95%的劳动者，法院和监管者正有力引导，回归保密协议。这又把我们带回举证责任。法院告知公司：如果想保护知识产权，就必须下功夫，执行有针对性的保密协议。而不是走偷懒的路子，把一名劳动者彻底挡在职业门外。法院正越来越多地，据此判定全覆盖式竞业限制无效。他们告诉公司：听着，针对商业秘密窃取，你们有强有力的法律保护。去用它们。如果他们真的偷了东西，尽管起诉。没错。如果前员工偷走客户名单、复制源代码，就以违反保密协议起诉他。但你不能先发制人，禁止他参与经济，只因为你担心他可能与你竞争。

¶35 完全合理。它实现了必要的企业安全，又没有劳动力市场冻结，带来的宏观经济附带损害。除了宏观经济上的好处，我们还必须强调，这里的道德平衡，以及这些改革带来的、深切的人的解脱。这是一个重大的生活质量问题。确实。我们说的是缓解严重、足以改变人生的职业焦虑。这些监管转变，为劳动力市场恢复真正的流动性。没错。这意味着，如果你花了10年、15年苦干、学习，成为所在领域的专家，你就真正拥有，自己积累起来的人力资本。你不必活在恐惧中，只因试图发展事业、为家人争取更好的生活，就害怕毁灭性诉讼。

¶36 宏观经济分析，最重要的结论无可否认，真的。过去几十年里，竞业限制悄悄蜕变为，一种结构性的市场扭曲。而且是严重的扭曲。它们系统性地压低工资、减少创业，本质上是囤积人才。但当前这股监管反击浪潮，终于在拆除那种买方垄断力量。让一切回归正常。对，它正迫使公司，回归真正的竞争。如今雇主若想留住最优秀的人，就必须靠更好的报酬、更好的管理、更好的企业文化。而不是只用合同小字，铐住员工。没错。这是回归真正的自由市场，这本就是这个体系，一开始就该有的运作方式。

¶37 这引出一个重要问题。从我们今天回顾的经济学洞见中，有最后一点，我认为很值得细想。是什么？我们通常不加质疑地接受：健康的资本主义经济，根本上依赖自由、高度竞争的商品与服务市场。好。这是基本常识。我们要求竞争，以保持价格公平、质量优良。所以当你审视自己所在的行业、自己的职业，问问自己：我们为何容忍了一个体系，让劳动力的自由市场被彻底消灭这么久？哇。对，这才是最关键的问题。它迫使我们重新思考：我们的潜力，究竟属于谁。感谢各位加入，这场关于劳动力流动性机制的深潜。继续质疑，那些入职文件里的小字条款。继续争取，拥有自己的人力资本。我们也希望，下次你或我们开头说的那位开发工程师，为一个更好的机会，决定递上辞职信时，心中满怀的是兴奋，而不是恐惧。

篇章逻辑框架图：本篇论证链条 The Claustrophobic Corp

中心问题：离职后限制，如何从高管专用的罕见工具，变成困住普通劳动者、扼杀整个经济的企业罗网？

现象 · 场景：一位苦熬五年、每周 60 小时的软件工程师，终于拿到竞争对手更高薪的工作；递交辞职、和家人庆祝后，几天后却收到前雇主的律师警告函——称他的技能和人脉属于公司财产，若入职就提起毁灭性诉讼

层面 A【演变 · 从高管工具到罗网】

① 三四十年前：只针对高管、首席科学家、顶尖研究员
② 保护核心机密，限 3–6 个月，全薪照发
③ 如今：中层、行政、零工乃至最低工资员工全覆盖
④ 保护的是通用经验与人脉，禁令 12–24 个月且补偿为零

层面 B【机制 · 陷阱如何布下】

① 入职时埋在电子文件里：要么接受，要么走人
② 双边谈判失败：求职者无力请律师划掉条款
③ 违约金 + 禁令救济 + 利润损失 + 费用转嫁
④ 寒蝉效应：即使条款无效，也足以让人不敢动

层面 C【代价 · 宏观经济损害】

① 知识溢出受阻：人才和想法无法交叉授粉
② 创业减少，经济失去颠覆性竞争者
③ 买方垄断：流失率被人为压低，没人涨薪
④ 即使你没签，整个行业的工资也被压低

⚔ 交锋：主持人唱反调——“公司花数百万培训员工，难道无权防止他立刻投奔对手？保密协议不是几乎无法执行吗？”→ 嘉宾：公司有权用保密协议保护真正的商业秘密，但不拥有劳动者的人力资本；竞业限制只是更便宜、更省事的选择——行政便利不应凌驾于劳动者的自主权之上

文章结论：❌ 竞业限制已悄悄蜕变为结构性的市场扭曲——系统性压低工资、减少创业、囤积人才；当前的监管反击正在拆除这种买方垄断，迫使企业回归真正的竞争

解决方案：3 条实操规则

① 收入门槛禁令
年薪低于约 10–12 万美元的劳动者，合同中的竞业限制依法自动无效，公司连诉讼都无法威胁

② 全额带薪花园假期
想执行限制，就必须在整个限制期支付 100% 工资和福利——戳穿“免费恐吓”的虚张声势

③ 回归有针对性的保密协议
真偷了客户名单或源代码再起诉；留人靠更好的薪酬、管理和企业文化，而非合同小字

核心结论：我们理所当然地要求商品与服务市场自由竞争，为何却容忍劳动力的自由市场被消灭这么久？这迫使我们重新思考——我们的潜力，究竟属于谁？

思考题（对标考研阅读推理题）

Why does mandatory garden leave quickly reveal companies' true motives for using non-competes?

[参考思路]

过去，公司执行竞业限制几乎零成本——寄一封律师警告函，靠律师费的威胁把员工吓退，“不过一枚邮票的钱”。花园假期规定：想执行 12 个月的限制，就必须在整个限制期支付 100% 的工资和福利，人力资源总监得去找首席财务官，为一个明年产出为零的人开 15 万美元的支票。这迫使公司严格计算：这名员工的专有知识是否真的危险到值得这笔沉没成本？结果公司纷纷放弃条款——证明它们从来不是为了保护关键机密，而只是一种免费的恐吓手段。考研推理题要点：作者用“让行为付出成本”来检验真实动机，是经济学中常见的论证方式。

20 个核心词汇速查（考研 / 雅思 / 托福 / 四六级核心）

cease-and-desist letter
/ˌsiːs ənd dɪˈzɪst ˌletə/
律师警告函；停止侵权函

non-compete clause
/ˌnɒn kəmˈpiːt klɔːz/
竞业限制条款

dragnet
/ˈdrægnet/
拉网；（大范围的）罗网

restrictive covenants
/rɪˈstrɪktɪv ˈkʌvənənts/
限制性契约

bilateral
/ˌbaɪˈlætərəl/
双边的

liquidated damages
/ˈlɪkwɪdeɪtɪd ˈdæmɪdʒɪz/
违约金（约定损害赔偿）

chilling
/ˈtʃɪlɪŋ/
令人寒心的；（chilling effect）寒蝉效应

knowledge spillovers
/ˈnɒlɪdʒ ˈspɪləʊvəz/
知识溢出

monopsony
/məˈnɒpsəni/
买方垄断

nondisclosure agreements
/ˌnɒndɪsˈkləʊʒə əˈgriːmənts/
保密协议（NDA）

proprietary
/prəˈpraɪətri/
专有的；所有权的

ubiquitous
/juːˈbɪkwɪtəs/
无处不在的

stifles
/ˈstaɪflz/
扼杀；抑制

asymmetric
/ˌeɪsɪˈmetrɪk/
不对称的；不对等的

punitive
/ˈpjuːnətɪv/
惩罚性的

injunctive relief
/ɪnˈdʒʌŋktɪv rɪˈliːf/
禁令救济

retainer
/rɪˈteɪnə/
（律师）预付聘金

cross-pollinate
/ˌkrɒs ˈpɒlɪneɪt/
交叉授粉；相互促进

attrition
/əˈtrɪʃn/
（人员）流失；自然减员

garden leave
/ˈgɑːdn liːv/
花园假期（带薪离职等待期）

多题型精练（考研英语｜雅思｜托福｜四六级）

题目按原文顺序分组排布，每题标注原文定位；参考答案与解析统一附在文档最后。

第一组 · 对应原文第一—六部分

第1题 — [考研英语] 词汇题 原文定位：第五部分 ¶13

Workers who back down even when a non-compete is legally void are showing what the report calls the _____ effect.

A. chilling
B. ripple
C. domino
D. halo

第2题 — [考研英语] 阅读理解•细节题 原文定位：第二部分 ¶5

Who were non-compete clauses originally used for, 30 or 40 years ago?

A. Executives, chief scientists and top researchers holding critical secrets
B. Minimum wage service workers
C. Gig platform operators
D. All new employees

第3题 — [托福听力] 六选三・细节多选 原文定位：第四部分 ¶11

Choose THREE answers.

Which THREE penalties may a worker face for breaching a non-compete?

A. Liquidated damages written into the contract
B. Injunctive relief to stop the new job
C. Paying the corporation's legal fees
D. Full salary paid during garden leave
E. A guaranteed 10 percent raise
F. A mandatory retraining course

第4题 — [雅思] 阅读理解•推理题 原文定位：第六部分 ¶16

Why are knowledge spillovers important to regional innovation hubs?

A. Workers moving between firms spread ideas and sometimes launch startups to solve unsolved problems
B. They allow companies to keep secrets longer
C. They reduce the number of new businesses
D. They make workers stay in one company

第二组・对应原文第七—十二部分

第5题 — [雅思] True / False / Not Given 原文定位：第七部分 ¶21

Even workers who have no non-compete clause in their contracts may see their wages suppressed.

True - 文中明确支持
False - 文中明确反驳
Not Given - 文中未说明

第6题 — [托福] 词汇题 原文定位：第七部分 ¶20

The word “attrition” in the passage is closest in meaning to:

A. the loss of employees over time
B. employee training
C. salary growth
D. hiring speed

第7题 — [考研英语] 阅读理解•推理题 原文定位：第十一部分 ¶30

Why do companies quickly drop non-competes under a mandatory garden leave framework?

A. Enforcing them now costs a full year's salary, which most employees' knowledge is not worth
B. Employees refuse to take garden leave
C. Courts ban all non-competes
D. Garden leave is too short to matter

第8题 — [托福] 句子简化 原文定位：第十部分 ¶29

Which sentence best expresses the essential information of: “If a worker's total compensation falls below that threshold, any non-compete clause in their contract is automatically declared void and unenforceable as a matter of law.”

A. Non-competes are automatically invalid for workers earning below a set income level
B. Low-paid workers must sign non-competes
C. Courts decide each case separately
D. High earners cannot sign non-competes

第9题 — [考研英语] 新题型 • 段落匹配 原文定位：第三—十一部分

Match each concept (41–45) with its description. There are TWO extra choices.

Read the podcast and complete the matching.

41. Failure of bilateral negotiation
42. The chilling effect
43. Monopsony power
44. Income threshold ban
45. Garden leave

A. New hires cannot realistically negotiate or remove a clause in standard onboarding documents.
B. Even a legally void clause frightens workers out of changing jobs.
C. Employers face little pressure to raise pay because workers cannot switch to rivals.
D. Non-competes become void for workers earning below a set salary line.
E. Companies must pay full salary and benefits throughout the restriction period.
F. Suing a former employee who copies source code under an NDA.
G. Giving every new employee a signing bonus.

第10题 — [六级] 翻译 原文定位：第八部分 ¶24

将下列句子译为中文：Convenience shouldn't trump rights.

6 个长难句精析

【长难句 1】 ⚲ 第二部分 ¶4（原文红色下划线）

How exactly did post-employment restrictions transform from this rare legal tool reserved for C-suite executives into, well, a corporate dragnet that locks ordinary workers out of their careers and stifles the entire economy?

[结构分析]

特殊疑问句 transform from A into B；A 带过去分词短语 reserved for…；B 带 that 定语从句（两个并列谓语 locks… and stifles…）

[参考译文]

离职后限制，究竟如何从一种专为 C 级高管保留的罕见法律工具，演变成一张把普通劳动者挡在职业门外、扼杀整个经济的企业罗网？

⚲ 考试定位：transform from A into B 是描述演变的高频结构；本句为全文中心问题，常作主旨题定位。

⚠ **仅限理解，不建议照搬写作：句中 well 为口语停顿，写作时删去：How did non-compete clauses transform from a rare executive tool into a corporate dragnet?**

🎧 听力提示（雅托）：post-employment restrictions 语速快；C-suite 读 /ˈsiː swiːt/；locks ordinary workers out 连读。【考研同学可略】

C-suite 指首席执行官（CEO）、首席财务官（CFO）等“C 字头”高管层。

【长难句 2】 ⚲ 第五部分 ¶13（原文红色下划线）

The fascinating and, frankly, deeply concerning part of the data is that a non-compete does not actually have to be legally enforceable to be highly effective.

[结构分析]

主语 part（插入语 frankly 打断两个并列形容词）+ is + that 表语从句；not have to be A to be B

[参考译文]

数据中耐人寻味、坦率说也令人深感忧虑的一点是：竞业限制其实不必在法律上可执行，也能高度奏效。

⚲ 考试定位：表语从句 + 反直觉结论，是考研阅读“作者态度”题常考句；该句即“寒蝉效应”的核心。

☑ **写作可直接仿写：The worrying part of the study is that a rule does not have to be enforced to change people's behavior.**

🎧 听力提示（雅托）：frankly 前后有停顿；deeply concerning 连读；legally enforceable 重音在 for。【考研同学可略】

enforceable（可强制执行的）与 void / unenforceable（无效的）相对。

【长难句 3】 第七部分 ¶20（原文红色下划线）

If they know their attrition rate is artificially suppressed because their staff legally cannot jump to a competitor, they face significantly less pressure to raise salaries, improve working conditions or invest in employee development.

[结构分析]

If 条件从句（know 后接宾语从句，内含 because 原因从句）+ 主句 pressure to do 后接三个并列不定式

[参考译文]

如果他们知道，流失率被人为压低，因为员工在法律上无法跳槽到竞争对手那里，他们加薪、改善工作条件、投资员工发展的压力就会大幅减小。

考试定位：多层从句嵌套 + 三项并列不定式，是考研长难句典型；本句解释“买方垄断”如何压低工资，常作因果题依据。

写作可直接仿写：If companies know their staff cannot easily leave, they face less pressure to raise salaries or improve conditions.

听力提示（雅托）：attrition rate 连读；artificially suppressed 语速快；significantly less pressure 中 less 重读。【考研同学可略】

attrition 原义“磨损、消耗”，在人力资源中指“人员流失”。

【长难句 4】 第八部分 ¶24（原文红色下划线）

The administrative convenience of a corporation should not supersede the fundamental autonomy of the labor force.

[结构分析]

主谓宾简单句；A should not supersede B（A 不应凌驾于 B 之上）

[参考译文]

公司的行政便利，不应凌驾于劳动力根本的自主权之上。

考试定位：supersede（取代、凌驾）为考研高频词；本句是嘉宾回应“唱反调”的价值判断，常作态度题定位。

写作可直接仿写：The commercial interests of tech companies should not supersede users' fundamental right to privacy.

听力提示（雅托）：administrative convenience 语速快；supersede 读 /ˌsuːpəˈsiːd/；fundamental autonomy 连读。【考研同学可略】

supersede 常与 rights / interests 搭配，写作中可替换 override / take precedence over。

【长难句 5】 第十部分 ¶29（原文红色下划线）

If a worker's total compensation falls below that threshold, any non-compete clause in their contract is automatically declared void and unenforceable as a matter of law.

[结构分析]

If 条件从句 + 被动语态主句 is declared void and unenforceable + as a matter of law 状语

[参考译文]

如果一名劳动者的总报酬低于这条门槛，其合同中的任何竞业限制条款，都依法自动宣告无效、不可执行。

考试定位：法律类被动句 + 双形容词补语，是考研翻译常考结构；as a matter of law（依法、在法律上）为固定表达。

写作可直接仿写：If a product fails to meet safety standards, it is automatically banned from sale as a matter of law.

听力提示（雅托）：total compensation 连读；void and unenforceable 连读；as a matter of law 句尾弱读。【考研同学可略】

threshold 意为“门槛、临界值”，读 /ˈθreʃhəʊld/，注意 h 不发音。

【长难句 6】 第十一部分 ¶31（原文红色下划线）

The law states that if the company chooses to enforce that 12-month restriction, they must pay the departing employee 100 percent of their full base salary and benefits for the entire duration of the restriction period.

[结构分析]

states that 宾语从句，内含 if 条件从句；pay sb sth 双宾语结构 + for... 时间状语

[参考译文]

法律规定：如果公司选择执行那 12 个月的限制，就必须在整个限制期内，向离职员工支付 100% 的全额基本工资和福利。

考试定位：宾语从句嵌套条件句 + 双宾语，是考研细节题常考的“规则说明”句；本句即“花园假期”的定义。

写作可直接仿写：The rule states that if a landlord chooses to end a lease early, they must compensate the tenant for the remaining months.

听力提示（雅托）：12-month 读 twelve-month；departing employee 连读；entire duration 中 duration 重音在 ra。【考研同学可略】

garden leave 源自英国：员工离职前被要求待在家里（“打理花园”），但照常领薪。

听力考点（雅托学生重点 | 考研同学可跳过）

1. 辩论信号词库（托福听力 Lecture 高频考点：反驳、让步、质疑）

播客原文信号词	功能	听力考点提示	书面替换
They pack up their desk, they celebrate with their family that weekend… Then, a few days later, the mail arrives.	叙事反转	开篇：喜事变噩梦	Then, unexpectedly, …
Well, 30 or 40 years ago, non-competes were incredibly narrow instruments. … But today, the macroeconomic data… shows a complete saturation of the labor market.	今昔对比	历史基线 vs 当下，细节题高频	In the past…; today, however, …
Meaning the worker is not in a position to hire a contract lawyer to strike out a non-compete clause in a standard HR portal.	解释术语	“双边谈判失败”的含义	In other words, …
It gets worse. They also routinely include fee-shifting provisions…	递进	惩罚层层加码	Even worse, …
…a non-compete does not actually have to be legally enforceable to be highly effective.	反直觉结论	寒蝉效应，态度题	Surprisingly, …
If one worker is financially paralyzed, that is a personal tragedy. But if tens of millions of workers are paralyzed across an entire sector…	由个体到整体	引出宏观损害	While…for individuals, for society…
OK, I understand the macroeconomic damage, but let's play devil's advocate and examine the corporate justification for a moment.	质疑	公司一方的理由	One might argue that…
Non-competes are a blunt, proactive instrument. … NDAs, however, are a surgical, reactive instrument.	对比	竞业限制 vs 保密协议	Whereas A…, B…
Now, in the past, the company would simply send the aggressive cease and desist letter… But under a mandatory garden leave framework…	今昔对比	花园假期改变公司的算盘	Previously…; now, …

2. 听力陷阱提示

- 口语填充词：you know / I mean / like / right / exactly / yeah——做题时可以忽略，别被打断节奏。
- 真正的考点在转折之后：but / however / rather than / it gets worse 后面才是说话人的真实观点。
- 双人对话结构：主持人用 let's play devil's advocate / isn't an NDA almost impossible to enforce? 提出质疑，嘉宾回应给出核心论点——对应托福 Lecture 中“学生提问—教授回应”。
- 法律术语密集：cease-and-desist、liquidated damages、injunctive relief、fee-shifting、garden leave——听到后先抓住“它对劳动者意味着什么”，不必纠结法律细节。

3. 数字听写陷阱（先盲听写下数字，再对照原文）

数字	原文语境
five years / 60-hour weeks	开篇工程师苦熬的时间与工时
30 or 40 years ago	竞业限制还是狭窄工具的年代
tens of thousands of dollars	仅回应一封警告函的律师预付金
tens of millions of workers	整个行业动弹不得的劳动者
10 percent raise	公司不必批准的加薪幅度
three to six months	旧模式下的限制期（且全薪照发）
12 to 24 months	现代全球性禁令的期限
$100,000 / $120,000	收入门槛禁令的示例收入线
$150,000 / 12-month / 100 percent	花园假期例子：年薪、限制期、需支付的工资比例
95%	应回归保密协议的劳动者比例

✍ 5 个高级句型（☑书面 4 + 🗣口语 1，可直接套用）

【句型 1】X does not actually have to be A to be B.

☑ **正式书面（考研 / 雅思大作文均可）**

中文功能：指出反直觉的事实：不必满足条件也能产生效果
适用话题：法律、社会心理、媒体类
话题举例：讨论威胁、谣言、规则的实际影响

原文例句：

The fascinating and, frankly, deeply concerning part of the data is that a non-compete does not actually have to be legally enforceable to be highly effective.

数据中耐人寻味、坦率说也令人深感忧虑的一点是：竞业限制其实不必在法律上可执行，也能高度奏效。

仿写例句：

A rumor does not actually have to be true to be damaging.

【句型 2】They have every right to A. But they don't own B.

☑ **正式书面（考研 / 雅思大作文均可）**

中文功能：先承认合理权利，再划定边界
适用话题：企业、劳动、隐私、版权类
话题举例：讨论公司与员工、平台与用户的权利边界

原文例句：

They have every right to protect actual trade secrets and confidential code through nondisclosure agreements. But they don't own the worker's human capital, experience or general professional skills.

他们完全有权通过保密协议保护真正的商业秘密和机密代码，但他们并不拥有劳动者的人力资本、经验或通用专业技能。

仿写例句：

Platforms have every right to set community rules. But they don't own the personal data of their users.

【句型 3】The convenience of A should not supersede the fundamental B of C.

正式书面（考研 / 雅思大作文均可）

中文功能：以“便利 vs 权利”表达价值判断
适用话题：法律、科技伦理、公共政策类
话题举例：讨论监控、数据收集、劳动规则

原文例句：

The administrative convenience of a corporation should not supersede the fundamental autonomy of the labor force.

公司的行政便利，不应凌驾于劳动力根本的自主权之上。

仿写例句：

The convenience of facial recognition should not supersede the fundamental privacy of citizens.

【句型 4】If X wants to A, the answer is to B, not to C.

正式书面（考研 / 雅思大作文均可）

中文功能：给出正确做法并否定错误做法
适用话题：管理、教育、政策建议类
话题举例：讨论如何留住人才、如何提高成绩

原文例句：

If a company wants to retain top talent, the answer is to pay the market value and create a great work environment, not to legally chain them to their desks.

如果一家公司想留住顶尖人才，答案是支付市场价值、创造良好的工作环境，而不是用法律把人锁在办公桌前。

仿写例句：

If a school wants to keep students engaged, the answer is to make lessons meaningful, not to add more tests.

【句型 5】It's like being asked to sign away your future just to get the keys to the building today.

口语句型（雅思口语 Part 3 / 托福口语）| ⚠ 大作文慎用

中文功能：用生活化比喻说明“为眼前利益牺牲长远自由”
适用话题：雅思口语 Part 3 / 托福口语举例说明（工作、合同话题）
话题举例：解释入职时签竞业限制的不公平

原文例句：

It's like being asked to sign away your future mobility just to get the keys to the building today.

这就像被要求签字放弃未来的流动自由，只为今天拿到大楼的钥匙。

仿写例句：

Accepting endless overtime for a small bonus is like trading your weekends for pocket change.

翻译必备短语 + 翻译练习

non-compete clause	竞业限制条款
chilling effect	寒蝉效应
knowledge spillover	知识溢出
garden leave	花园假期

翻译练习：将下列句子译为中文

You actually get to own the human capital you built.

[参考译文]

你真正拥有了自己积累起来的人力资本。（get to do 意为“得以、有机会做”；you built 为省略关系代词的定语从句，修饰 human capital）

学完本篇之后输出任务（备考向 Post-Reading Tasks）

1. Retell 复述（雅思口语 Part 3 / 托福口语 1 分钟）【考研选做】

用英文简述竞业限制如何困住劳动者，必须提到其演变、入职陷阱、寒蝉效应、宏观损害和改革措施。可参考框架：

Non-competes used to… / Today, however, … / Even when…, workers… / This hurts the economy because… / Reforms such as…

[参考复述]

Non-competes used to be narrow tools for executives and top researchers, usually short and fully paid. Today, however, they are buried in onboarding paperwork for almost everyone, from middle managers to minimum-wage staff, and workers simply click accept. Even when a clause is legally void, the threat of a costly lawsuit creates a chilling effect, so workers turn down better jobs. This hurts the economy because it blocks knowledge spillovers, reduces startups and gives employers monopsony power to hold down wages. Reforms such as income threshold bans, fully paid garden leave and a return to targeted NDAs are restoring a free labor market.

2. 句子仿写：针对“劳动权益”话题（考研 / 雅思高频）

从上面的 书面句型（句型 1–4）中任选 2 个仿写。

[参考仿写]

句型 2：*Employers have every right to expect hard work. But they don't own their employees' evenings and weekends.*

句型 4：*If a city wants to attract young talent, the answer is to provide affordable housing, not to offer one-off cash rewards.*

3. 二次盲听（雅托必做）

遮住英文全文，再听一遍音频，逐项检验能否听懂核心论证：

□ 能说出竞业限制在过去和现在的三点区别
□ 能解释“寒蝉效应”为何不需要条款真正有效
□ 能听出主持人“唱反调”的质疑及嘉宾的回应
□ 能用 15 万美元的例子解释花园假期如何改变公司算盘

参考答案与解析

预听问题参考答案

① 三四十年前，竞业限制只用于高管、首席科学家和顶尖研究员这类掌握核心机密的人，范围窄、限期短（3–6 个月），而且通常全薪照发。如今它被嵌进中层管理者、基层行政人员、零工平台从业者甚至最低工资一线员工的合同里。陷阱在入职时就布下：条款埋在一大堆电子入职文件里，以“要么接受、要么走人”的方式呈现；求职者急需工作，没有能力请律师划掉条款，只能点“接受”——这就是“双边谈判的失败”。

② 因为它的危害是整体性的：① 知识溢出受阻——熟练劳动者在公司间流动，会带去隐性知识和更好的做法，或离职创业解决老东家不肯改的问题；竞业限制把人锁住，交叉授粉撞上砖墙，创业数量下降。② 买方垄断——员工在法律上不能跳槽，流失率被人为压低，公司就没有加薪、改善条件的压力，不必为人才竞价，生产率提升几乎全部落入利润。所以即使你自己没签竞业限制，整个行业的工资也可能被压低。

第1题 [考研英语] 词汇题

答案：A

解析：原文：a critical psychological and economic phenomenon known as the chilling effect… its mere existence paralyzes the workforce.

第2题 [考研英语] 阅读理解•细节题

答案：A

解析：原文：they were deployed almost exclusively for executive leadership, chief scientists, or top-tier researchers… people with actual literal secrets.

第3题 [托福听力] 六选三 • 细节多选

答案：A, B, C

解析：原文：liquidated damages… injunctive relief… fee-shifting provisions. D 是改革措施，对劳动者有利；E、F 原文未作为惩罚提及。

第4题 [雅思] 阅读理解•推理题

答案：A

解析：熟练劳动者自由流动，带去隐性知识和更好的做法，并离职创办颠覆性企业；竞业限制让这种交叉授粉撞上砖墙。

第5题 [雅思] True / False / Not Given

答案：True

解析：原文：even if you… do not personally have a non-compete clause in your contract, your wages might still be suppressed. Because your entire industry's labor market is artificially frozen.

第6题 [托福] 词汇题

答案：A

解析：原文：If they know their attrition rate is artificially suppressed because their staff legally cannot jump to a competitor…

第7题 [考研英语] 阅读理解•推理题

答案：A

解析：想执行 12 个月限制，就得付 100% 工资和福利；事实证明，员工的专有知识很少真的值一年不劳而获的薪水。

第8题 [托福] 句子简化

答案：A

解析：主干：If compensation falls below the threshold, any non-compete is declared void。

第9题 [考研英语] 新题型·段落匹配

答案：41-A 42-B 43-C 44-D 45-E

解析：F 是报告提倡的合理做法（保密协议），不是题目中的概念；G 原文未提及。

第10题 [六级] 翻译

答案：便利不应凌驾于权利之上。

解析：trump 作动词意为“胜过、压倒”（源自纸牌游戏中的“王牌”），译为“凌驾于……之上”。

@每日英语外刊精选